

Incorrect electricity bill directed to be corrected under Supply Code 2005

High Court of Judicature at Allahabad · Division Bench · 17 June 2010 · WRIT - C No. 35545 of 2010 · **Writ disposed; bill to be corrected under Supply Code within one month.**

HEADNOTE

Where the consumer had already obtained an endorsement from the Executive Engineer to correct an electricity bill, the Allahabad High Court disposed of the writ by directing that the bill be corrected in accordance with the Electricity Supply Code, 2005 within one month of production of the certified copy.

FACTUAL SUMMARY

The petitioners, running M/s Ekdil Mini Floor Mill, complained that the electricity bill for connection no. 3601/257260 was incorrect. On 12 March 2010 they applied to the Executive Engineer, Electricity Distribution Division-II, Friends Colony, Etawah, enclosing a copy of the bill. An endorsement that day required the dealing assistant (later deleted as respondent no. 4) to make the correction. Counsel for the petitioners and for respondent no. 3, the distribution licensee, were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

correction of electricity bill

HOLDING

The electricity bill shall be corrected in accordance with the Electricity Supply Code, 2005 within one month of production of the certified copy of the order before the concerned authority. ¶ 1

FLAG order invokes the Electricity Supply Code, 2005 generally; no clause numbered

PRINCIPLE TAGS

correction-of-electricity-bill Where the consumer had already obtained an endorsement from the Executive Engineer to correct an electricity bill, the Allahabad High Court disposed of the writ by directing that the bill be corrected in accordance with the Electricity Supply Code, 2005 within one month of production of the certified copy. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLED AMOUNT WAS IN FACT INCORRECT, AND THE QUANTUM OF ANY CORRECTION

The Court directed correction in accordance with the Supply Code without examining the bill. ¶ 1